

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

FRANCISCUS DYLAN ROSARIO

Plaintiff and Appellant

v.

SUBHI ABDELHALIM, individually, and dba SONOMA LIQUOR

Defendant and Respondent,

RESPONDENT'S OPENING BRIEF

San Francisco County Superior Court
Case No. CGC-21-594102
The Honorable Garrett L. Wong, Judge Presiding

Rebekah A. Morrissey, Esq.
KOYAMA & COSTELLO
Attorneys for Respondent Subhi Abdelhalim, individually,
and dba Sonoma Liquor
P.O. Box 24508
Oakland, CA 94623-1508

CERTIFICATE OF INTERESTED PARTIES

(Initial Certificate)

This form is being submitted on behalf of Respondent Subhi Abdelhalim, individually, and dba Sonoma Liquor

Interested entities or persons required to be listed under California Rule of Court 8.208 are as follows:

Full name of interested party:

None.

Nature of interest

None.

The undersigned certifies that the above-listed persons or entities (corporations, partnerships, firms, or any other association, but not including government entities or their agencies) have either (1) an ownership interest of 10 percent or more in the party if it is an entity; or (2) a financial or other interest in the outcome of the proceeding that the justices should consider in determining whether to disqualify themselves, as defined in California Rules of Court 8.208(e)(2).

Dated: August 3, 2026

Rebekah A. Morrissey

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INTRODUCTION

Plaintiff and Appellant Franciscus Dylan Rosario (hereinafter referred to as “Appellant”) seeks to overturn the jury verdict in this matter with claims of instructional error. Appellant claims that he requested the court give CACI 707 as an instruction which was denied. Subsequently, the jury asked a question if they should consider Vehicle Code sections 22107 and 21804(a) and if so, they requested to be instructed on those provisions. The Court responded that the jury should not consider these statutes and the jury could not be instructed on them. Appellant alleges this was reversible error.

Appellant’s position is flawed in several ways. First, Appellant is incorrect regarding the substance of CACI 707. CACI 707 is titled “Speed Limit” and addresses Vehicle Code section 22352, not Vehicle Code section 22107. Vehicle Code section 22107 dealing with turning on a roadway and CACI 705, “Turning”, contains the instruction based upon Vehicle Code section 22107. Accordingly, Appellant failed to request any specific turning instruction (CACI 705) and has therefore waived the issue on appeal.

Second, when the jury asked the question at issue in this appeal, Appellant did not object and request instruction on these vehicle code sections. Appellant moved for mistrial claiming that the jury, by even asking a question about Vehicle Code section 22107, was considering issues outside of the scope of trial. Essentially, Appellant did not object to the response to the question, he objected to the potentiality that the jury was considering these Vehicle Code sections at all. This is directly opposite to the arguments raised in this appeal. It is clear that at trial, Appellant did not consider the Vehicle Code sections at issue and presented no evidence to support their consideration and made no request for a negligence per se instruction.

Third, even if the Court’s instruction was error, there is no evidence of any prejudicial error. If the Court had given the instruction requested by Appellant, CACI 707, it is unlikely that the jury would have reached a

different verdict as that instruction deals with the speed limit and not turning. Even if a turning instruction was given, it is still unlikely a different outcome would occur as the reasonable care standard found is the general negligence instruction is essentially identical CACI 705, which does address turning.

STANDARD OF REVIEW

The propriety of jury instructions is a question of law which is reviewed de novo. (*Martinez v. Rite Aid Corp.* (2021) 63 Cal.App.5th 958, 969.)

FACTUAL BACKGROUND

This appeal arises from a defense verdict after a jury trial related to a car vs. scooter accident. Liability was disputed, with Appellant claiming Respondent made an unsafe right turn and hit him in the crosswalk. Respondent maintained that if there even was any impact to his vehicle, Appellant was traveling the wrong way against the flow of traffic and failed to yield to Respondent who was completing his turn.

A. RELEVANT PROCEDURAL BACKGROUND

Plaintiff filed a list of proposed jury instructions on March 31, 2025, and April 21, 2025. (AugCT, Exhibit A, Attachment A.) The list requested CACI 707, the instruction at issue in this appeal. CACI 707 states:

The speed limit where the accident occurred was [insert number] miles per hour.

The speed limit is a factor to consider when you decide whether or not [name of plaintiff/name of defendant] was negligent. A driver is not necessarily negligent just because the driver was driving faster than the speed limit. However, a driver may be negligent even if the driver was driving at or below the speed limit.

There is no evidence in the record that Plaintiff ever requested CACI 705, which actually addresses turning. CACI 705 states: “A driver must use reasonable care when turning [or moving to the right or to the left].” There is

no evidence in the record that Appellant raised these issues at any point prior to instructing the jury or when the jury asked question #1.

Appellant made no request for a negligence per se instruction based upon violation of the Vehicle Code.

B. TRIAL TESTIMONY

Respondent testified at trial that just before the collision he was traveling about five miles per hour as he was making a right turn. (RT, day 8, 120:17-26.) He looked in front of him and checked his sideview mirror and did not see any pedestrians, scooters, or bicycles. (RT 8, 133:6-17.) Respondent did not feel any sort of impact to his vehicle and did not believe his vehicle made contact with Appellant. (RT 8, 133:18-21.) After turning right, Respondent pulled over when he heard someone yelling for help. (RT 8, 133:22-25.) He got out of the vehicle and Appellant was yelling at him, which led Respondent to back up and call 911. (RT, 133:26-134:6.) Respondent did not see any marks on his van after the accident; it sustained no damage. (RT 8, 125:2-4; RT 7, 150:25-27.).)

Officer David Fernandez testified that Appellant was operating a Lime scooter during the accident and it sustained no damage. (RT 7, 150:11-24.) Officer Fernandez testified that Appellant was driving the Lime scooter on the opposite side of the road against the normal flow of traffic. (RT 7, 153:1-24.) Appellant testified that he had the scooter and was walking through the intersection at the time of the collision. (RT 7, 173:2-3.)

C. JURY QUESTIONS

During deliberations, jurors asked three questions. Relevant to this appeal is question #1 which stated: “In considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code Sections 22107 and 21804(a). If so could we be instructed on those provisions?”

The Court responded to the question advising the jury they were not to consider these code sections and they would not be providing instructions on these sections.

There is no evidence in the record that at the time question #1 was raised and responded to Appellant made any objection or request for further instruction. In fact, the only evidence in the record is found in RT 11, which documents the discussion regarding jury question #3. At that time, Appellant made a motion for mistrial based on the jury's alleged consideration of these Vehicle Code sections. Far from requesting the jury be instructed on Vehicle Code section 22107, Appellant argued that any mention or potential consideration of these sections was grounds for mistrial. (RT, 11, 3:5-4:25.)

Appellant specifically stated he had no objection to the Court's refusal to instruct on the Vehicle Code sections. The relevant portion of the transcript reads as follows:

THE COURT: I see. So you don't have an objection to the instruction given in response to Jury request number one?

MR ROSARIO: No. I have objection to the fact they were accessing or requesting all of them anyways. But in number one, you know, I understand what's going on here. They should not have been accessing external information or requesting Vehicle Code sections that were not presented during the trial in view of the evidence.

Further on RT 11, page 4, lines 8-14, Appellant clearly agreed with the Court's response to Jury question #1. He stated, "I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions."

Appellant misrepresents that record in his claim that when the Court proposed its response prohibiting consideration of the statutes he promptly objected. He cites to page 10 of RT 11, claiming he argued, "Of course we have an objection." A simple review of this portion of the transcript shows

his objection and argument were related to Jury question #3 and raised no argument or request for instruction on Vehicle Code section 22107.

The court on page 10 noted Appellant made no objection when the responses to Jury questions #1 or #2 were being determined. Despite this, the Court allowed Appellant to make a record of his objections related to the jury question #1 after the fact while responding to jury question #3. Appellant did not mention requesting a turning jury instruction, did not request the court instruct the jury related to Vehicle Code section 22107, and did not in any way object to the response made to the jury to not consider Vehicle Code section 22107.

ARGUMENT

In order to prevail on appeal, Appellant must demonstrate that the refusal to instruct on Vehicle Code section 22107 was error and he must establish a reasonable probability that the incorrect instruction prejudiced his case. (*Pool v. City of Oakland* (1986) 42 Cal.3d 1051, 1069; *Morales v. 22nd Dist. Agricultural Assn.* (2016) 1 Cal.App.5th 504, 524–525; see generally Cal. Const., art. VI, § 13.)

A. APPELLANT WAIVED INSTRUCTIONAL ERROR BY FAILING TO REQUEST CACI 705 OR ANY SPECIFIC INSTRUCTION REGARDING TURNING

In a civil case, each of the parties must propose complete and comprehensive instructions in accordance with his theory of the litigation; if the parties do not do so, the court has no duty to instruct on its own motion.” (*Agarwal v. Johnson* (1979) 25 Cal.3d 932, 950–951.) Neither a trial court nor a reviewing court in a civil action is obligated to seek out theories plaintiff might have advanced, or to articulate for him that which he has left unspoken.” (*Finn v. G. D. Searle & Co.* (1984) 35 Cal.3d 691, 701–702.)

The California Supreme Court in *Metcalfe v. County of San Joaquin* (2008) 42 Cal.4th 1121, held: “Instructions in the language of an

applicable *statute* are properly given.’ (7 Witkin, Cal. Procedure (4th ed. 1997) Trial, § 280, p. 326.) Where, as here, ‘the court gives an instruction correct in law, but the party complains that it is too general, lacks clarity, or is incomplete, he must request *the additional or qualifying instruction in order to have the error reviewed.*’ [Citations.]” (*Conservatorship of Gregory* (2000) 80 Cal.App.4th 514, 520.) Plaintiff’s failure to request any different instructions means he may not argue on appeal the trial court should have instructed differently. (*Agarwal v. Johnson, supra*, at p. 951; *Conservatorship of Gregory, supra*, at pp. 520–521.)” (*Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1130-1131.

Appellant failed to request a more specific turning instruction. His proposed jury instructions lists CACI 707, which addresses the speed limit, a nonissue in this trial. Further, it is undisputable that Appellant vehemently opposed giving any instruction on Vehicle Code section 22107, contained in CACI 705. Appellant moved for a mistrial when the jury even asked to be instructed on this code section. He admitted in open court that he agreed with the Court’s refusal to instruct on Vehicle Code section 22107 and only now that he has lost at trial does he seek to argue that the failure to instruct was reversible error.

Respondent does recognize that the proposed list of jury instructions does include CACI 707, and states: “Duty of Driver to Pedestrians: Explicit duty of drivers to yield to pedestrians within marked crosswalks.” However, this is again a reference to a completely different instruction. CACI 710 deals with duties of care for pedestrians and drivers. None of these instructions contain any mention of Vehicle Code 22107 or the standard of care for turning, which is the substance of CACI 705.

There is no evidence in the record that Appellant requested CACI 705, 707, or 710 be given or that such a request was denied. It is just as likely that the Court and parties discussed and agreed to the jury instructions as given.

It is clear that Appellant was aware of how to create a record of objections for appeal but simply failed to make any objection regarding the selected jury instructions until after judgment was entered.

Every argument made by Appellant at the Superior Court level was seeking to prevent the jury from considering Vehicle Code section 22107, by seeking a mistrial for the jury even potentially considering them and by failing to list in substance or in number a jury instruction related to turning.

Appellant did not request any jury instruction contemplating turning or CACI 705. Accordingly, he has waived any instructional error on appeal.

B. APPELLANT DID NOT REQUEST A NEGLIGENCE PER SE INSTRUCTION

Appellant argues that the trial court erred by allowing defendant to assert negligence per se instruction while simultaneously not instructing the jury on Vehicle Code 22107. As outlined above, Appellant failed to request a turning jury instruction in either substance or by requesting CACI 705. Further, Appellant made no request or mention of a negligence per se based upon violation of Vehicle Code 22107 in his proposed jury instructions. The appellate record is similarly devoid of any request or argument for a negligence per se instruction. It is not asymmetric application of the law to give a jury instruction requested by the defense on a proper affirmative defense. Appellant simply failed to request a per se instruction and cannot now argue unequal application of the law.

C. THE COURT'S RESPONSE TO JURY QUESTION #1 WAS NOT BASED ON THE LAW NOT BEING IN EVIDENCE

Appellant argues that the Court based its response to Jury questions #1 on the premise that the statutes were not evidence. That is simply inaccurate. The portions of the record cited by Appellant are objections to questions during testimony from witnesses, not the decision to respond to the jury question in a particular way. The conclusion that this formed the basis

for the Court's response to the jury question is wholly unsupported by the record.

D. APPELLANT HAS NOT ESTABLISHED PREJUDICIAL ERROR

In order to prevail on the claim of instructional error, Appellant must demonstrate that a different result would have occurred had the instruction been given. “[I]nstructional error in a civil case is not grounds for reversal unless it is probable the error prejudicially affected the verdict. (*Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 580.) In determining whether instructional error was prejudicial, a reviewing court must evaluate ‘(1) the state of the evidence, (2) the effect of other instructions, (3) the effect of counsel’s arguments, and (4) any indications by the jury itself that it was misled.’ (*Id.* at pp. 580–581.)” (*Major v. Western Home Ins. Co.* (2009) 169 Cal.App.4th 1197, 1217.)

CACI 705, which addresses turning states: “A driver must use reasonable care when turning [or moving to the right or to the left].” The jury was given CACI 401 which states in relevant part: “A person can be negligent by acting or by failing to act. A person is negligent if that person does something that a reasonably careful person would do in the same situation.”

In essence, both these instructions contain the same standard and requirement: a person must use reasonable care in a given situation, which obviously includes turning. There is no substantive difference in the standard contained in these situations and it is clear from the closing argument of Appellant that he argued to the jury that Respondent failed to exercise reasonable care when turning, a clear recitation of the applicable jury instruction on negligence that was given.

There is no indication that if the jury had been instructed with CACI 705 they would have reached any different conclusion. There is no real difference in standard of factual differences which would give rise to a

different outcome. This is also true in light of the argument of Respondent that no impact was made between Appellant and Respondent's vehicle. It is just as likely that the jury believed the impact never occurred.

Appellant's reliance on *Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, is misplaced and factually distinct from the current matter. *Sesler* involved a far more complex situation where the plaintiff requested a special instruction articulating the duty of a left-turning vehicle when an oncoming vehicle has yielded the right-of-way, but he could not see whether there were other oncoming vehicles in other lanes. This presented a unique situation which involved some drivers yielding right of way and whether that could impact duties to other drivers in other lanes who had not so yielded the right of way.

In finding prejudicial error the court noted that the jury submitted the following question to the court: "Does a left turning vehicle have the right-of-way to the entire intersection or to one lane at a time?" In response, the court evidently simply reread section 21801, and continued to refuse to give Ghumman's proposed instruction No. 6, even though it would have answered the precise question posed by the jury foreman.

This is monumentally different from the situation at hand. Appellant did not propose a specific jury instruction regarding turning as discussed in detail above. Further, when confronted with a jury question regarding if they should consider Vehicle Code section 22107, Appellant agreed that the jury should not be so instructed and moved for a mistrial on the grounds that the jury even considered applying Vehicle Code 22107.

Appellant makes an argument that the admittance of the Complaint which contained allegations of violation of Vehicle Code 22107 was error. However, this is likely the source of the jury's question. This fact has no impact on the truth that Appellant did not seek or pursue a negligence per se instruction or claim. As a result, there is no instructional error and it is

unlikely that even if the instruction had been given, anything would have been different.

Drury v. Ryan (2025), is likewise unhelpful as it similarly to *Sesler* involved a left turn across many lanes of traffic when some vehicles had yielded the right of way and others had not. In the pending action, while the jury did ask a question, it was not about the substance or based on confusion of the law itself but on whether they should consider the Vehicle Code sections alleged in the Complaint. It is not a foregone conclusion that anything would have been different but likely a simple point of clarification. If the instruction had been given, as evidenced by the plain language of the CACI instruction, the standard of reasonable care was the same and unlikely to yield different results.

CONCLUSION

After losing at trial, Appellant now tries to rewrite history and allege instructional error for the failure to give a jury instruction that was never requested. Appellant has waived this issue on appeal given the failure to request a turning instruction or to request giving an instruction related to Vehicle Code 22107 at any point in time prior to this appeal.

August 3, 2026

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Rebekah A. Morrissey
Date: 2026.08.03
13:57:35 -07'00'

Rebekah A. Morrissey
Attorneys for Respondent Subhi
Abdelhalim, individually,
and dba Sonoma Liquor

CERTIFICATE OF WORD COUNT

Pursuant to California Rule of Court 8.204(c)(1), counsel for Respondent Subhi Abdelhalim, individually, and dba Sonoma Liquor states that, exclusive of this certification, the cover, the tables, any signature block, the certificate of interested parties, and any attachment, this brief contains 3,608 words as determined by the word count of the computer program used to prepare the brief.